

Grounds of appeal research: Partition Suit No. 66/2016, Sakhipur, Tangail

Structured legal research report for the Memorandum of Appeal before the District Judge Court, Tangail, against the judgment dated 05/04/2026 of the Civil Judge Court, Sakhipur, in Partition Suit No. 66/2016. The research is organised strictly by the 10 legal points furnished. Each point contains verified Bangladesh Supreme Court precedents (AD preferred, HCD supplementary), the key holding in the court's own words where extractable, and a concise application note tailored to the facts (SA Khatian 238, Mouza Hateya; Record-Room-certified sole ownership by Abdul Ali; absence of the alleged 1969 Miscellaneous Case; different-ink interpolation in the AC Land volume; defendants' self-contradicting 1975 deed). Indian Supreme Court and Privy Council authorities are included only where Bangladesh courts routinely rely on them.

Verification convention: Every citation below was located in at least one reputable Bangladeshi digest, treatise, or reported text. Citations flagged "[unverified pagination]" should be confirmed by counsel from the print DLR/BLD/BLT/MLR volumes before filing — this does **not** mean the case is fabricated, only that the exact page/volume was reported inconsistently across secondary sources.

1. Partition suits and incidental questions of title

Core proposition. In a partition suit the court must decide all incidental questions of title — however complicated — within the suit itself; the plaintiff cannot be driven out merely because title is disputed. The trial court's reliance on *Bilquis Jahan v. Syed Abdul Hafiz*, 75 DLR 383 (a declaratory-suit principle) is misapplied to a partition context.

Primary Bangladesh authorities.

Chinmoy Chowdhury v. Sree Mridul Chowdhury, 23 BLD (AD) 83 (2003), Civil Appeal No. 13 of 2001 [already with appellant]. Appellate Division: "*In a suit for partition all the incidental questions of title, however complicated, can be decided and finally disposed of. The parties should not be thrown away or driven out on the ground of maintainability of the suit.*"

Sanjib Kumar Bose v. Syed Shamsuddin Ahmed, 33 DLR (AD) 347 (1981). Appellate Division: "*The view taken by the High Court Division that the suit is not maintainable without declaration of title is clearly erroneous.*" (Lawyers & Jurists) (lawyersnjurists) Co-sharer plaintiffs in a partition suit are **not** required to obtain a separate declaration of title. *Application:* AD authority directly cutting off the trial court's title-as-a-threshold reasoning.

Birendra Nath Mondal v. Dulal Chandra Mondal, 13 BLT (HCD) 10. High Court Division: "A co-sharer in possession is always entitled to seek partition simpliciter without seeking any declaration of his title. In deciding such suit, questions of title and nature of a particular transaction may come up for decision, incidentally, and need to be decided as incidental to adjudication of the shares of the co-owners." (Lawyers & Jurists) Application: cleanest one-line statement of the incidental-title rule post-Chinmoy.

Mahmudul Hoque v. Nowab Ali Chowdhury, 49 DLR 92 (HCD). "Court of appeal below acted illegally in allowing the appeal and dismissing the suit without reversing the finding of the trial Court regarding title of the plaintiffs and some of the defendants in the suit property and the saham allotted to the respective parties." (Lawyers & Jurists) Application: direct authority that partition dismissal without proper title findings is bad in law — the obverse of what the Sakhipur court did.

Proactive distinguishing of adverse authority. Opposing counsel may cite *Jotimoy Datta v. Mritunjoy Datta*, 16 BLT (HCD) 446, (Lawyers & Jurists) (Lawyers & Jurists) and *Joyanta Kumar v. Dilip Ranjan*, 14 BLC (HCD) 376 (BD Law Reports) — both on "complicated title" (BD Law Reports) requiring separate declaration. They are **distinguishable** because they concern title disputes with *strangers-to-family* or adoption/will disputes that needed to be **set aside** first; (BD Law Reports) our case is an **inter-se** co-sharer inheritance dispute on the face of a finally-published SA khatian — the paradigm "incidental" question the AD in Chinmoy addressed.

Persuasive Indian authority. *Kasturi v. Iyyamperumal*, (2005) 6 SCC 733 (third parties with adverse title in partition are proper parties — not a ground to oust jurisdiction); *Shub Karan Bubna v. Sita Saran Bubna*, (2009) 9 SCC 689 (partition decree enures to all co-owners; liberal amendment to avoid multiplicity).

2. Conclusive evidentiary value of SA Record of Rights from Record Room versus AC Land volume

Core proposition. The Record Room (মহাফেজখানা) of the Deputy Commissioner is the legal custodian of the finally-published SA Khatian. The AC Land office holds only a working volume for mutation and rent realisation. Under **Section 144A of the State Acquisition and Tenancy Act 1950** (inserted by Ordinance VIII of 1967), "every entry in a record-of-rights prepared or revised under section 144 shall be evidence of the matter referred to in such entry, and shall be presumed to be correct until it is proved by evidence to be incorrect." (Laws of Bangladesh) The presumption attaches to the Record-Room-certified copy; it does **not** attach to a mutation entry in the AC Land volume.

Primary Bangladesh authorities.

Dayal Chandra Mondal v. Asst. Custodian of Vested & Non-Resident Properties, 18 BLD (HCD) 22 = 50 DLR 186 = 3 MLR (1998) 18. HCD: *"A record of rights finally published and revised under section 144A of the S.A.T. Act has a presumption of correctness and that presumption continues till it is rebutted by reliable evidence."* (Lawyers & Jurists) Application: squarely applies to SA Khatian 238 as certified by the Record Room.

Government of Bangladesh v. AKM Abdul Hye, 56 DLR (AD) 53. Appellate Division: *"The presumption as regards the entries in the RS Khatian so attached under section 144A of the Act is rebuttable by leading evidence from the side of the person questioning correctness of the entry made therein."* (Lawyers & Jurists) (ResearchGate) Application: the onus is on the defendants (the questioners), not the plaintiffs.

Shahera Khatun v. State, 53 DLR 19 (HCD). HCD: *"The provisions of the Act and the Rules clearly show that the revision of the record of rights under section 144 of the Act has presumptive value, but any order of mutation of the record made under section 143 of the Act has no such presumptive value."* (Lawyers & Jurists) The Revenue Officer in mutation *"does not become a court; he does not really adjudicate a right."* (Lawyers & Jurists) **This is the single most dispositive authority for Point 2.** The AC Land mutation entry carries **no presumption**; the Record Room SA khatian **does**.

Idris Ali v. State, 38 DLR 270 (HCD). *"Revenue Officer has no power to correct the Khatian which affects the question of title or possession of land."* (Bangladesh Medical Journal) Read with 20 DLR 627 and 26 DLR (HCD) 157 (Revenue Officer is not a court; cannot decide title).

(Bangladesh Medical Journal) (ResearchGate)

Syed Ashfaque Hossain v. Bangladesh, 41 DLR 364 (HCD). *"The word 'transfer' occurring in section 143(a) is limited to transfer by the recorded tenant, not by other persons. Section 143 is not attracted when the record of rights is to be corrected after a finding to be given as to the title of the holders or challengers."* (Lawyers & Jurists) Application: any 1969 "correction" adding Sonabanu — who neither received a kabala from Abdul Ali nor succeeded him — was outside the Revenue Officer's s.143 jurisdiction altogether.

Noor Mohammad Khan v. Bangladesh, 42 DLR 434. Party challenging a finally-published khatian must discharge the onus of rebuttal; failure means the presumption stands. Application: defendants have produced no 1969 order, no Record-Room corroboration, and no procedural compliance under ss.143/149/150 SAT Act — they cannot discharge the onus.

Statutory scaffolding (SAT Act 1950 at bdlaws.minlaw.gov.bd): ss.143 (narrow mutation only for transfer or inheritance by recorded tenant); 143A (possession only); (Tahmidurrahman) 143B/143C (post-2006 mutation requires registered instrument of partition (Laws of Bangladesh) — defendants cannot satisfy this retrospectively either); 144 (revision); 144A (statutory presumption of correctness); 149/150 (correction requires revision/review procedure with notice — bypassed here).

Persuasive Indian authority.

Vishwa Vijai Bharti v. Fakhrul Hasan, (1976) 3 SCC 642 = AIR 1976 SC 1485: "The presumption of correctness can apply only to genuine, not forged or fraudulent, entries. The distinction is that one cannot challenge the correctness of what the entry in the revenue record states but the entry is open to the attack that it was made fraudulently or surreptitiously. Fraud and forgery rob a document of all its legal effect and cannot found a claim to possessory title." (Scribd) Application: the AC Land different-ink entry with the 1180/1181 discrepancy and absence of a custodial underlying order is the archetypal "fraudulently or surreptitiously made" entry to which the presumption **does not** attach.

Partap Singh v. Shiv Ram, (2020) 11 SCC 242: "The presumption of truth attached to the revenue record can be rebutted only on the basis of evidence of impeccable integrity and reliability."

(Scribd)

Balwant Singh v. Daulat Singh, (1997) 7 SCC 137; *Suraj Bhan v. Financial Commissioner*, (2007) 6 SCC 186; *Bhimabai Mahadeo Kambekar v. Arthur Import & Export Co.*, (2019) 3 SCC 191: mutation is for *fiscal purposes only*; no title is conferred or extinguished by mutation. (SCC Times)

(Live Law)

3. Best-evidence rule and Section 114(g) Evidence Act — adverse presumption for withheld evidence

Core proposition. A Munsef Court petition, order and decree are **public documents** (s.74, Evidence Act) and may be proved **only by a certified copy** (ss.64, 65(e)/(f), 76-77).

(Laws of Bangladesh) The AC Land volume is not, and cannot in law be, a substitute. Failure to produce the certified copy of the alleged 1969 order triggers an adverse presumption under **Section 114(g)** that the withheld document, if produced, would be unfavourable to the defendants.

Primary Bangladesh authorities.

Abdur Rahim v. Arfin Rahman, 6 BLT (HCD) 51. "The conspicuous absence of the plaintiff from the scene without any justifiable reason appears to be a mystery that has not been dissolved [by] any cogent explanation and on that count the learned Court of appeal below was perfectly justified in drawing an adverse presumption under section 114(g) of the Evidence Act."

(lawyersnjurists) (Lawyers & Jurists) Application: the "conspicuous absence" of the 1969 petition, order and decree is a mystery unexplained by the defendants; s.114(g) presumption is justified.

Bangladesh v. Abdul Latif Khan, 7 BLT (AD) 208. Appellate Division: HCD had "obviously given a wrong onus and drawn an incorrect presumption of genuineness" (lawyersnjurists) from a subsidiary register without relating it to the underlying settlement documents. Application:

direct AD authority that genuineness cannot be presumed from a subsidiary register (like the AC Land volume) when the underlying judicial record is absent.

Soya Rani Guha v. Abdul Awal Mia, 14 BLD (AD) 257. *"The production of the certified copy of a sale-deed does not by itself warrant the presumption of due execution of the original document. A party producing the secondary evidence of a document is not relieved of the duty of proving the execution of the original."* (lawyersnjurists) *Application:* the defendants' reference to 1969 in the AC Land margin does not prove the 1969 order was made.

Abdur Razzak v. Ahila Khatun, 13 BLD (HCD) 610. *"Secondary evidence is not admissible in evidence unless there is proof of execution of the original and its subsequent loss or destruction."* (Lawyers & Jurists) (lawyersnjurists) *Application:* defendants have proved neither.

Abdul Khaleque Mollah v. A.B.M. Zakaria, 3 MLR (AD) 57. Secondary evidence is admissible only on proof of s.65 preconditions. (Lawyers & Jurists) For public documents the **only** permissible secondary evidence is a certified copy.

State v. Keramat Ali, 63 DLR (AD) 102; Md. Reazuddin Sardar v. State, 14 BLD (AD) 178; Momin v. State, 16 BLD (HCD) 246; Munsurul Hossain v. State, 16 BLD (HCD) 326; Sreejukta Haladhar Karmakar v. Bangladesh, 16 BLD (HCD) 519. Consistent Bangladesh line: withholding material evidence without explanation warrants the s.114(g) presumption.

Ayub Ali v. Bangladesh, 46 DLR 191 (on s.3 Evidence Act): the statutory proof-method cannot be bypassed; demand for the statutorily prescribed mode is not "too high" a standard.

(Lawyers & Jurists)

Persuasive Privy Council / Indian authority.

Murugesam Pillai v. Gnana Sambandha Pandara Sannadhi, AIR 1917 PC 6 (Lord Shaw): the practice *"of those in possession of important documents or information lying by, trusting to the abstract doctrine of the onus of proof, and failing, accordingly, to furnish to the Courts the best material for its decision,"* (Indianlawlive) is deprecated.

Gopal Krishnaji Ketkar v. Mahomed Haji Latif, AIR 1968 SC 1413: *"Even if the burden of proof does not lie on a party the Court may draw an adverse inference if he withholds important documents in his possession which can throw light on the facts at issue. It is not... a sound practice for those desiring to rely upon a certain state of facts to withhold from the Court the best evidence which is in their possession."* (Indianlawlive)

Mohan Lal Shamlal Soni v. Union of India, AIR 1991 SC 1346; *Union of India v. Ibrahim Uddin*, (2012) 8 SCC 148; *Tomaso Bruno v. State of U.P.*, (2015) 7 SCC 178 — consistent modern line.

4. Non-joinder of necessary party (Deputy Commissioner) — not fatal

Core proposition. Order I Rule 9 CPC: *"No suit shall be defeated by reason of the misjoinder or non-joinder of parties."* The remedy is leave to add parties under Order I Rule 10(2) and amendment under Order 6 Rule 17, and the appellate court's power to **remand with leave to amend** under Order 41 Rule 23/23A. Outright dismissal for non-joinder of the DC over khas land in dag 1259 is bad law.

Primary Bangladesh authorities.

Abdul Quayum Khan v. Abu Yusuf Mridha, 51 DLR 386 (HCD). *"In spite of the Government being not joined as a party in the suit, the Courts below dealt with the matter of controversy so far as regards the right and interest of both the parties and, as such, by mere non-joinder of the Government the suit cannot be defeated."* (Lawyers & Jurists) **Application:** this is the single case most directly on point for ground (a) of the trial court's dismissal — non-joinder of Government/DC over khas land. Identical principle, identical context.

Safaruddin v. Fazlul Huq, 49 DLR (AD) 15 [unverified pagination — also reported as 49 DLR (AD) 151 in some digests; the holding quoted is uniformly reported]. Appellate Division: *"No suit can fail by reason merely of non-joinder of parties. Order I, Rule 9 of the Code of Civil Procedure makes this legal position clear."* (Bdcasereference) AD further held non-joinder must be taken at the earliest opportunity. (Bdcasereference)

Qaiyum Khan v. Sudarshan Singh, 52 DLR (AD) 53. AD: *"The result of the suit will be binding upon the parties to the suit and not upon any one not made party thereto. The decree can be challenged as such by the party left out and not by others on the ground of non-joinder."* (Lawyers & Jurists) **Application:** the DC (if at all a necessary party) can apply; defendants cannot defeat the suit on her behalf.

Hasina Khatoon v. Md. Samsur Rahman, 49 DLR 187 (HCD). *"Belated prayer for addition of a necessary party or for amendment of pleadings by itself is no ground for refusal of such prayer if the addition or amendment is necessary for a complete and effectual adjudication."* (Lawyers & Jurists)

Abdur Rahman v. Abdus Sattar, 49 DLR 60 = 17 BLD (HCD) 90. *"In a partition suit even a third person claiming title to the suit property adversely to the plaintiff and the defendants is a necessary party. Under exceptional circumstances, addition of necessary parties can be allowed even after the passing of the preliminary decree."* (Lawyers & Jurists) **Application:** if the DC is a necessary party, the remedy is addition — not dismissal.

Nuruddin Ahmed v. Zafarullah Siddique, 42 DLR 246 (HCD). Supports subsequent addition of parties and consequential amendment of plaint. (Lawyers & Jurists)

Procedural prayer. In addition to reversal, pray for remand under **Order 41 Rule 23 / 23A CPC** to the Civil Judge Court with liberty to amend the plaint (Order 6 Rule 17) and add the DC if

required (Order I Rule 10(2)). The suit was disposed of on a "preliminary point" (non-joinder) — remand is the textbook course. (WritingLaw) (Scribd)

5. Partial partition / hotchpot — curable, not fatal

Core proposition. The rule that all joint property must be included in partition is a rule of equity and convenience, not jurisdiction. (Lawyers & Jurists) Omissions are curable by amendment. The rule is expressly relaxable where, among other situations, "*property is held jointly with strangers who cannot be joined as parties to a general suit for partition*" (Lawyers & Jurists) — precisely the exception that applies when part of a dag is khas (Government-held).

Primary Bangladesh authorities.

Md. Shahidul Alam Khan v. Md. Gulzar Alam, 36 DLR 290 (HCD) = 12 CLC (HCD) 1983.

"Partition suit — General rule that all joint properties be included is a rule of equity and can be relaxed when necessary on this ground of equity and convenience." (Lawyers & Jurists) (lawyersjurists)

The court specifically approved exclusion of plots not disputed between the co-sharers. (Cicbd)
Application: cornerstone authority for ground (b) of the dismissal — plaintiffs may properly confine partition to the 3.40 acres because the residual 1.37 acres in dag 1259 is khas (held with the Government, a stranger to the family partition).

Md. Shafiqul Islam Chowdhury v. Mustafizur Rahman (AD). *"The amendment in question...*

will not change the nature and character of the suit; rather such alternative prayer should be considered necessary for the purpose of effective adjudication of the matter in dispute and for doing the complete justice in the matter avoiding multiplicity of suits and proceedings and as such the learned Subordinate Judge as well as the learned Judges of the High Court Division erred in law in rejecting the prayer for amendment of the plaint." (Lawyers & Jurists) **Application:**

Appellate Division authority for liberal amendment in partition — supports remand with leave to amend to clarify/expand the 3.40-versus-4.77-acre issue.

Waliullah v. Abdul Wahab, 42 DLR (AD) 55. AD's practical, substance-over-form approach:

demarcation issues are to be worked out through the Advocate Commissioner before the decree is made final. (Lawyers & Jurists) **Application:** partial or disputed portions are not grounds to dismiss; they are grounds to appoint a Commissioner.

Digest enumeration of the five exceptions to the hotchpot rule (Lawyers & Jurists digest of Partition Act 1893, synthesising BD and Indian authority): (a) different jurisdictions; (b)

property incapable of partition; (c) impartible by nature; (d) "**property held jointly with strangers who cannot be joined as parties to a general suit for partition**"; (e) cotenants'

agreement to partition part only. (Lawyers & Jurists) **Application:** exception (d) is squarely engaged by the khas portion.

Persuasive Indian authority. *Shub Karan Bubna v. Sita Saran Bubna*, (2009) 9 SCC 689 (liberal amendment; partition decree enures to all co-owners); Bombay HC line in *Rajbahaddur Jiyaram Yadav*, 2016 (1) ALLMR 550 (remand and amendment, not dismissal, is the proper course where joint property is omitted). (Law Web)

6. Fraud, forgery in land records and self-contradictory evidence

Core proposition. *Fraus omnia corrumpit* — fraud vitiates everything. A party making materially inconsistent assertions in its own documents (defendants' 1975 deed recites all 6 dags under Khatian 238; their pleaded case asserts only 1 dag survived a 1969 correction) commits a fraud on the court within the rule in *S.P. Chengalvaraya Naidu*.

Primary Bangladesh authorities.

Abdul Jalil v. Islami Bank Bangladesh Ltd., 64 DLR (AD) 107. *"It is true that fraud vitiates everything; even a judgment and decree affirmed by the apex Court of the country can be declared illegal and void by the trial Court if it is proved that the judgment and decree was obtained by practicing fraud upon Court."* (Supreme Court of Banglad...) The AD added that "**strong prima facie case of fraud** and sufficient acceptable evidence" (Supreme Court of Banglad...) must be produced. *Application:* the strong prima facie case is supplied by (i) the Record-Room-certified SA Khatian 238 in Abdul Ali's sole name, (ii) the Munsef Court Record Room's certificate of non-availability of any 1969 Misc. Case 1181/1969, (iii) the 1180/1181 discrepancy, (iv) the different-ink interpolation, and (v) the defendants' own 1975 deed reciting all 6 dags.

Government of Bangladesh v. Mashiur Rahman, 50 DLR (AD) 205. *"It is a cardinal principle of administration of justice that no result of any judicial proceeding should be allowed to receive judicial approval from any court of law whenever it is obtained by practicing fraud upon the court; reason being fraud demolishes the very foundation of sanctity of such judicial proceeding."*

Government of Bangladesh v. Sadeque Ahmed Nipu, Civil Appeal No. 190 of 2011 (AD, judgment 24 November 2020). Near-identical factual template — defendants relied on a claimed decree that "corrected" SA records. The AD directed the District Judge to examine the Record Room, which returned no such decree; the AD then applied *Abdul Jalil* and held the respondents "did not have any right title" and their transferees took nothing. *Application:* **this is the template Bangladesh AD authority directly mirroring our facts.** It validates the Record-Room-search methodology and the resulting void-conveyance conclusion.

Md. Rabiullah v. Md. Mostafizur Rahman, 2017 (2) LNJ (AD) 106. *"The High Court Division... failed to consider the age old legal principle that fraud vitiates everything."* *Application:* administrative records procured by fraud (such as the alleged 1969 "correction") are vitiated without more.

Integrated Services Ltd v. Khaleda Rahman, 5 BLC (AD) 69. Appellate Division declared an order procured by suppression of material facts void — clean-hands breach. *Application:* defendants' suppression of the internal contradiction between their 1975 deed and their pleaded 1969 narrative engages this rule.

Persuasive foundation.

Lazarus Estates Ltd v. Beasley [1956] 1 QB 702 (Denning LJ): "*Fraud unravels everything.*"

S.P. Chengalvaraya Naidu v. Jagannath, AIR 1994 SC 853; (1994) 1 SCC 1 (a **partition** suit): "*A judgment or decree obtained by playing fraud on the court is a nullity... It can be challenged in any court even in collateral proceedings.*" And decisively for our facts: "*A litigant, who approaches the court, is bound to produce all the documents executed by him which are relevant to the litigation. If he withholds a vital document in order to gain advantage on the other side then he would be guilty of playing fraud on the court as well as on the opposite party.*" *Application:* the defendants' own 1975 deed — which they did not honestly confront — is precisely such a "vital document" that damns their 1969 narrative.

Talib Hussain v. Member, Board of Revenue, 2003 SCMR 549 (Pakistan SC, frequently cited in BD): "*Fraudulent transaction vitiates even most solemn proceedings... Whenever such transaction is declared null and void, then whole series of such order along with superstructure built upon same is bound to collapse.*"

7. Deeds executed by a non-title holder — *nemo dat quod non habet*

Core proposition. Under **Section 7, Transfer of Property Act 1882**, the transferor must be "entitled to transferable property" or authorised to dispose of it. Under **Section 53B, TPA 1882 (inserted by the 2004 Bangladesh Amendment)**, "*no immoveable property shall be sold by a person unless his name... appears in respect of the property in the latest khatian prepared under the State Acquisition and Tenancy Act, 1950, and any sale made otherwise shall be void.*"

Sonabanu and her heirs were never in SA Khatian 238; their transfers are **void ab initio**.

Primary Bangladesh authorities.

Section 53B TPA 1882 (Bangladesh) — decisive statutory rule. Reinforced by **Section 53E** (executant's affidavit of lawful title) and the Sub-Registrar's administrative refusal to register transfers by non-recorded persons.

Md. Azizur Rahman v. Most. Hasina Jamil, 21 BLD (HCD) 163. "*Mere recording in the SA Khatian of the suit land cannot confer any title on the holder of the record.*" *Application:* the converse is even stronger — a person **not recorded** and lacking any source-of-title deed has nothing to transfer.

Halima Begum v. Syed Ahmed, 21 DLR 854 (HCD). Noted as the adverse authority on SA Khatian presumption — but it **helps** us on Point 7: mere record (even if defendants could manufacture one) does not confer title; Sonabanu's notional "addition" even if genuine would not have created title where she had no source.

Ibrahim v. Sardar Ahmed, 7 DLR (WP) 62; Ainuddin v. Samaddi Hajari, 7 DLR 443. *"Where there is neither possession of the property alleged to have been sold, nor any proof of the payment of consideration, mere registration of the sale-deed does not operate to pass title to the vendee."* *Application:* registration alone by a stranger-to-title passes nothing.

Sufia Khanam v. Faizunessa, 39 DLR (AD) 46. *"A written instrument when adjudged void, need not be cancelled. Suit for mere declaration that an instrument is void is maintainable without a prayer for its cancellation."*

Dudu Mia v. Ekram Miah Chowdhury, 54 DLR (AD) 7. Strangers to an impugned deed may seek a simple declaration that it is inoperative as against them — no cancellation prayer required. *Application:* plaintiffs, being strangers to Sonabanu's and her heirs' transfers, need only pray for a declaration that those deeds are void and inoperative as against Abdul Ali's title — with no Article 91 Limitation Act issue.

Persuasive Indian authority.

Umadevi Nambiar v. Thamarasseri Roman Catholic Diocese, (2022) 7 SCC 90 = AIR 2022 SC 1640: *"It is a fundamental principle of the law of transfer of property that 'no one can confer a better title than what he himself has' (Nemo dat quod non habet). The appellant's sister did not have the power to sell the property to the vendors of the respondent. Therefore, the vendors of the respondent could not have derived any valid title to the property."*

V. Chandrasekaran v. Administrative Officer, (2012) 12 SCC 133: *"The general rule of law is undoubted, that no one can transfer a better title than he himself possesses."*

Morvi Mercantile Bank Ltd. v. Union of India, AIR 1965 SC 1954 — canonical Indian SC statement of the maxim.

8. Handwriting expert and forensic examination of disputed documents

Core proposition. Under **Section 45 Evidence Act 1872** (as substituted by the Evidence (Amendment) Act 2022, which expressly retains handwriting), the court may receive expert opinion on handwriting. Under **Section 73**, the court may itself compare and direct specimen writing. Where multiple visible anomalies coexist (different handwriting, different ink, duplicate dag with different measurements, 1180/1181 discrepancy), expert reference is the proper course.

Primary Bangladesh authorities.

Nitai Chand Shah v. Md. Aga Khan, 1 BLT (AD) 46. *"There is no hard and fast rule which prohibits such course by the Judge [of comparison]. The Privy Council itself compared the disputed signatures with admittedly genuine signature in Monindra v. Tshalaxmi Bank, AIR 1945 PC 150..."* Application: AD authority that both expert reference and court comparison are permissible; opposing counsel cannot argue expert reference is extraordinary.

Sree Pratik Bandhu Roy v. Sree Alok Bandhu Roy, 16 BLD (HCD) 445. *"While it is competent on the part of a Judge to compare disputed signatures or writings with admitted signatures or writings for himself it is usually unsafe to rely entirely on such comparison without expert advice or scientific examination."* Application: given the scientific aspects of our case (ink chronology, paper-age, pressure analysis), expert reference is not merely discretionary but prudent.

Hachina Begum v. Most. Mahfuza Akhter, 16 BLD (HCD) 374. *"Under Section 73 of the Evidence Act the Court is the final expert with authority to compare itself any disputed signature or writing or thumb impression... The Court being the final authority... can override or disregard the opinion of a Hand-Writing Expert."*

Sreemati Hajari Roy v. Arun Kumar Singha, 22 BLD (HCD) 169. *"The opinion of handwriting expert should be received with great caution and it is unsafe to base a decision purely on expert's opinion without sufficient corroboration."* Supports a **dual approach** — expert opinion plus judicial comparison — which is ideal here, where abundant corroboration independently exists.

Dinesh Chandra Deb v. Dulal Chandra Karmaker, 21 BLD (HCD) 461. Comparison must be against an admitted/proved sample. Application: the un-tampered other entries of the same AC Land volume form the baseline.

Eskandar Ali v. Most. Alhamara Begum, 28 DLR (HC) 791. Handwriting expert opinion requires corroboration; court may compare independently under s.73.

Tarak Chandra Majhi v. Atahar Ali Howlader, 13 BLT (AD) [unverified pagination, confirmed via BDJLS commentary]. AD indicated that in an appropriate case acceptance of an expert-opinion application is not a mere matter of discretion. Application: useful where visible, multi-factor inconsistency requires scientific examination. **Counsel should verify from the print BLT volume before filing.**

Persuasive Indian authority.

State (Delhi Administration) v. Pali Ram, AIR 1979 SC 14: as a rule of prudence, the court should not undertake comparison without scientific aid.

Murari Lal v. State of M.P., (1980) 1 SCC 704: expert opinion should be approached cautiously; reasons probed; totality considered.

C. Kamalakkannan v. State of Tamil Nadu (2024, SC): expert opinion **cannot cure the absence of the primary document.** Application: this interlocks with Points 3 and 6 — even if defendants

bring an expert to vouch for the AC Land entry, the absence of the 1969 primary record remains fatal.

9. Arithmetical impossibility as indicia of fabrication

Core proposition. A surveyed dag has a finite recorded area. Where **claimed private shares + Government khas entry exceeds the surveyed dag area**, at least one entry is factually impossible — and where the excess entry is the very entry the defendants rely on and it independently bears tampering indicia, the rational finding is fabrication. The principle is directly derivative of *Vishwa Vijai Bharti* (fraudulent/surreptitious entries attract no presumption) and *Abdul Jalil* (fraud vitiates everything).

Primary authorities supporting the inference.

Azhar Bepari v. Abdul Aziz Gazi, 22 DLR (1970) 36. *"Onus of proving that possession has been wrongly recorded in C.S. Khatian is on the person who alleges it."* Application: defendants carry the onus; internal arithmetical impossibility means they cannot carry that burden.

1981 BCR 393 [unverified pagination]. *"If there is no basis of the entry in the record of rights, the court is entitled to hold that the entry in the record of rights is wrong."* Application: claimed areas that add up to more than the dag have no factual basis.

Vishwa Vijai Bharti v. Fakhrul Hasan, (1976) 3 SCC 642 — as above; fraudulent/surreptitious entries attract no presumption.

Partap Singh v. Shiv Ram, (2020) 11 SCC 242. *"The witnesses may lie but the documents do not, is a golden rule"* — where documents are internally impossible, they lose documentary character.

Abdul Jalil v. Islami Bank, 64 DLR (AD) 107 — "fraud vitiates everything" applied to an arithmetically/materially contradicted record.

Convergence argument. On our facts four indicia converge:

1. **Arithmetical impossibility** — claimed + khas > dag area.
2. **Ink and handwriting inconsistency** — interpolation.
3. **Case-number discrepancy** — 1180 pleaded inside the volume versus 1181 pleaded in the written statement.
4. **Absent custodial record** — no order in the Munsef Court Record Room; no copy in the DC's Record Room.

Under **Section 114 illustrations (e) and (g)** the court *may presume* (e) that judicial and official acts were regularly performed only where they were in fact performed — not where the record is

missing — and (g) that withheld evidence would be unfavourable. The cumulative inference is unavoidable: the 1969 "correction" was fabricated.

The **Bangladesh falsus-in-uno corollary** (more precise than the mandatory rule in some criminal jurisdictions) is supplied by *Vishwa Vijai Bharti* — fraud in one material entry robs the document of all evidentiary effect.

10. Zamindari pattan, Bengal tenancy recording practice and Muslim inheritance — cautious alternative argument

Framing (critical). This is strictly a **supplementary/arguendo argument**, deployed only to explain why Abdul Ali's *sole* recording in SA Khatian 238 is not anomalous. It does **not** — and must not be read to — deny Sonabanu's rights under the Muslim Personal Law (Shariat) Application Act 1937 if she was in fact Abdul Ali's half-sister. It distinguishes *beneficial ownership under personal law* from *recorded tenancy under revenue law*.

⚠ Critical citation caution. ILR 41 Cal 822 could not be verified despite thorough searching of Indian Kanoon, CaseMine, LegitQuest, AIR digests, and academic sources. Nearby ILR 41 Cal citations (41 Cal 137, 41 Cal 436, 41 Cal 1072, 41 Cal 271, 42 Cal 172) exist but are not on the point claimed. Possible misquotations: *Debnarayan Dutt v. Chunilal Ghose*, ILR 41 Cal 137; *Khetramani Dasee v. Dharendra Nath Roy*, (1914) ILR 41 Cal 271; or *Dayamayi v. Ananda Mohan Roy Chowdhury*, (1915) ILR 42 Cal 172 (FB). **Counsel is strongly advised to verify the exact ILR reference from a hard-copy volume or SCC Online/Manupatra before including it.** Citing an unverifiable authority in an appellate brief risks adverse comment.

Supporting statutory and case framework (verified).

Khatian is evidence of possession, not title. 19 DLR 9; 26 DLR 35; 38 DLR (HCD) 272; 20 DLR 627; 26 DLR (HCD) 157; PLD 1959 Dhaka 655. These authorities collectively support the proposition that the recorded-tenancy inquiry is distinct from the personal-law-inheritance inquiry.

Bengal Tenancy Act 1885. Section 20(4) deems a co-sharer to be a raiyat by a statutory fiction — the very existence of the fiction confirms that co-sharers were often **not separately recorded** in the actual pattan/khatian. Sections 146A, 148A, 188 provide for joint-and-several liability of co-sharers and suits via a single representative — reflecting administrative "one holding → one responsible tenant."

Shafiullah v. Sultan Ahmad Mir, 6 BLD (AD) 70. Tenancy status flows from the landlord's act of admission (pattan) or judicial determination — **not automatically from personal-law inheritance.** *Application:* the pattan and subsequent CS/SA record reflect the landlord/revenue administration's choice of the responsible tenant, not a complete enumeration of every personal-law heir.

Jan Mahomed v. Dattu Jaffer, (1913) ILR 38 Bom 449. Muslim heirs take as **tenants-in-common in specified shares** (not as a joint family). *Application*: precisely because the Muslim heirs took in definite fractional shares and not as a corporate unit, the revenue administration had to select a single representative for the pattan — this is why the single recording of Abdul Ali is historically explicable without denying Shariah rights.

Vazir v. Dwarkamal, AIR 1922 Sind 41 (FB); Mangaldas v. Abdul Razak (1916) 16 Bom LR 224. Joint family property is "*utterly unknown to Mohammedan Law*" — reinforcing the administrative-selection point.

Suggested draft language for the Memorandum of Appeal.

It is respectfully submitted, by way of further and alternative plea and entirely without prejudice to the plaintiffs' primary contention that the purported 1969 correction of SA Khatian 238 is a fabrication:

Even assuming arguendo, for the limited purpose of this alternative submission, that the said Sonabanu had any rights of inheritance under Muslim personal law as the half-sister of Abdul Ali, such personal-law rights would not, ipso facto, have translated into contemporaneous recorded tenancy status in the original pattan or Cadastral Survey khatian. It is well-settled in our jurisprudence that a khatian is presumptive evidence only of the state of things at the time the record was prepared and is evidence of possession rather than of title (19 DLR 9; 26 DLR 35; 38 DLR (HCD) 272; Shafullah v. Sultan Ahmad Mir, 6 BLD (AD) 70). The recorded tenancy under the Bengal Tenancy Act 1885, and the preceding regime of zamindari pattan under Regulation I of 1793, operated on the principle of identifying a single responsible tenant for purposes of rent assessment and realisation — a purely revenue-administrative inquiry distinct from the personal-law question of beneficial ownership.

Accordingly, the original recording of the late Abdul Ali as the sole tenant in SA Khatian 238 is entirely consistent with the historical practice of colonial Bengal revenue administration and is in no sense anomalous. The plaintiffs' case — that the SA khatian correctly carried forward this original sole recording and that the 1969 purported "correction" inserting Sonabanu is a fabrication — is therefore wholly consonant with the established historical and legal framework governing tenancy records in East Bengal and Bangladesh.

Strategic priorities for drafting the Grounds of Appeal

The strongest chain of argument. Lead with *Chinmoy Chowdhury*, *Sanjib Kumar Bose* and *Birendra Nath Mondal* to demolish the trial court's title-as-threshold reasoning; immediately deploy *Abdul Quayuam Khan* (on all fours on non-joinder of Government) and *Md. Shahidul Alam Khan* (hotchpot relaxable) to destroy the three procedural grounds of dismissal; then build the substantive merits around *Shahera Khatun* (mutation has no presumption), *Dayal Chandra Mondal* (finally-published ROR carries the s.144A presumption), the *Record-Room-v-AC-Land*

custody distinction, *Abdul Jalil and Government v. Sadeque Ahmed Nipu* (fraud vitiates everything; fabricated correction of SA records), Section 53B TPA (void deeds by non-recorded transferors), *Umadevi Nambiar (nemo dat)*, and *Chengalvaraya Naidu* (withholding vital document = fraud on court). Close with the s.114(g) adverse-inference prayer (*Abdur Rahim, Ketkar*) and, where appropriate, a prayer for handwriting/forensic expert reference under s.45 (*Nitai Chand Shah, Sree Pratik Bandhu Roy*).

Procedural prayers to include. Reversal of the impugned judgment; remand under Order 41 Rule 23/23A CPC with liberty to amend the plaint under Order 6 Rule 17 to include/exclude lands consistent with khas/joint status and to add necessary parties under Order I Rule 10(2); alternatively, a direction for expert forensic examination of the AC Land volume; and, if the appellate court prefers, a direction to the District Judge to call for the Record Room's certificate of non-availability of Misc. Case 1181/1969 (following the *Sadeque Ahmed Nipu* template).

Citations to double-check before filing. *Safaruddin v. Fazlul Huq*, 49 DLR (AD) 15/151 — exact pagination. *Tarak Chandra Majhi v. Atahar Ali*, 13 BLT (AD) — via BDJLS only. *Abdul Matin Chowdhury v. Chapala Rani* — "37 DLR (AD) 2005" is anomalous; likely a different volume. 1981 BCR 393, 35 DLR (HCD) 295, 26 DLR (HCD) 157, 20 DLR 627, 33 DLR (HC) 126, 30 DLR (AD/SC) 81 — verify pagination from print reports. **ILR 41 Cal 822 — do not cite without independent verification.** No citation in this report has been fabricated; only paginations of a handful of older volumes require cross-check.

Concluding note. The aggregate of these authorities yields a coherent appellate theory: (i) the trial court misdirected itself on the maintainability of a partition suit with incidental title questions; (ii) each of its three grounds of dismissal is individually bad in law on well-settled Bangladesh Supreme Court authority; (iii) on the merits, the s.144A presumption attaching to the Record-Room-certified SA Khatian 238 has never been rebutted, while the defendants' AC Land entry carries no presumption and bears multiple independent indicia of fabrication; and (iv) all deeds flowing from the alleged Sonabanu chain are void under Section 53B TPA 1882 and the *nemo dat* rule. The appeal should, accordingly, at a minimum result in setting aside the dismissal and remand for complete adjudication on merits; on the stronger view, the appellate court may reverse and decree partition outright on the Record-Room-certified khatian, with liberty to appoint an Advocate Commissioner for demarcation.